

**Court No. - 40**

**Case :-** WRIT - C No. - 13274 of 2018

**Petitioner :-** Devesh Kumar

**Respondent :-** State Of U.P. And 3 Others

**Counsel for Petitioner :-** Anup Kumar Khare

**Counsel for Respondent :-** C.S.C.,Baleshwar Chaturvedi

**Hon'ble Amreshwar Pratap Sahi,J.**

**Hon'ble Shashi Kant,J.**

Heard learned counsel for the petitioner and Sri Baleshwar Chaturvedi for the respondents.

The petitioner admits having an electricity connection and also admits that there is some default in the payment of the electricity dues for which the prayer made in paragraph no. 12 is that the petitioner is ready and willing to deposit the amount but in some easy installments.

In view of this, there is no occasion for us to quash the recovery citation.

Learned counsel for the respondents, Sri Chaturvedi has invited our attention to the provision of Clause-6.14 of the Electricity Supply Code, 2005. The same is extracted hereinunder:-

**"6.14 Installment Facility**

(i) The Licensee may extend the facility of installments to those consumers only who are in financial distress. However, no waiver of surcharge shall be allowed.

(ii) No officer below the rank of Executive Engineer shall grant installments. The Executive Engineer, / DGM / and General Manager can grant up to maximum of two, three or four monthly installments respectively. However first installment shall not be less than 40% of the total amount. Where the amount for installments exceeds Rs.10,000/= (Ten Thousand), the consumer shall be asked to deposit post dated cheques of the installments to the Licensee."

We direct the respondent no. 4, that in the event, the petitioner approaches the said respondent with a request to the said effect along with a certified copy of this order, the Executive Engineer shall proceed to pass an appropriate order extending the maximum relief that may be admissible and permissible in the facts and circumstances of the present case, keeping in view the grievance of the petitioner by passing an appropriate order within three weeks of the date of presentation of the certified copy of this order before him. The recovery proceedings shall abide by the said order of the Executive Engineer.

***Disposed of*** with the said directions.

**Order Date :-** 12.4.2018

S.Chaurasia